

Inha University in Tashkent

***Theme 2: Creation of Legal Basis of Uzbekistan's Independence and
Adoption of the Constitution of Uzbekistan***

Tashkent – 2024



Outline:

- Formal Dissolution of USSR
- Legal Basis of Uzbekistan's Independence
- Adoption of Constitution of Uzbekistan



The Process of Dissolution of USSR

- On December 8, 1991, the heads of three of the four republics, the founders of the USSR - Belarus, Russia and Ukraine - gathered in the Belovezhskaya Pusha
- The agreement is also well-known by the name the Belavezha Accords.
- Results:
 - ✓ the USSR ceased to exist
 - ✓ Declaration on the impossibility of the formation of the USS
 - ✓ Signing the Agreement on the Establishment of 'Commonwealth of Independent States'



The Process of Dissolution of USSR

- On December 21, 1991 at the meeting of presidents in Alma-Ata (Kazakhstan) eight more republics: Azerbaijan, Armenia, Kazakhstan, Kyrgyzstan, Moldova, Tajikistan, Turkmenistan, Uzbekistan joined the CIS
- It was signed the Alma-Ata Declaration and the protocol to the Belavezha Accords on the creation of the CIS
- Membership in this organization was rejected by the Baltic republics, as well as by Georgia
- Georgia joined the CIS only in October 1993 and announced its withdrawal from the CIS after the war in South Ossetia in the summer of 2008



The Outcome of the Dissolution

- The organs of power of the USSR as a subject of international law ceased to exist on December 25-26, 1991
- Russia declared itself the legal successor and the successor state of the USSR
- On December 25, the USSR President Mikhail Gorbachev announced the termination of his activities as president of the USSR in connection with the formation of the CIS, signed a decree on abdicating the Supreme Commander of the Soviet Armed Forces and transferred control of strategic nuclear weapons to Russian President Boris Yeltsin
- On December 26, 1991, is considered the day of the end of the existence of the USSR
- *Although some institutions and organizations of the USSR still functioned during 1992:*
 - the Control Chamber, the State Bank, the Ministry of Defense,
 - the State Standard of the USSR, the Ministry of Civil Aviation, the State Border Protection Committee
- *Committees that have never officially dissolved:*
 - ✓ the Committee of constitutional supervision
 - ✓ the Inter-republican Economic Committee



State Independence of Uzbekistan

- The Supreme Council of the Republic of Uzbekistan adopted the Law "On the Fundamentals of State Independence of the Republic of Uzbekistan" on August 31, 1991
- The law consists of 17 articles and according to the Article one, the Republic of Uzbekistan became "an independent, democratic state along with the Republic of Karakalpakstan"
- The seventh session of the Supreme Council of the Republic of Uzbekistan on September 30, 1991, decided to grant the status of the Constitutional Law to the Law "On the Fundamentals of State Independence of the Republic of Uzbekistan"
- The resolution states that the articles of the Constitutional Law should be remained in force if they contradict even the provisions of current Constitution of the Republic of Uzbekistan.



Referendum in 1991

- It was decided to hold a referendum in Uzbekistan in order to strengthen its independence.
- On November 18, 1991, the VIII session of the Supreme Council adopted a resolution on the referendum of the Republic of Uzbekistan. The referendum was planned to hold on December 29.
- The question of the referendum was "Do you approve the proclamation of the state independence of Uzbekistan by Supreme Council?"
- In the nationwide referendum 9,889,707 people took part, or 94.1 percent of those included in the electoral list. 9 million 718 thousand 155 people voted for the declaration of independence of the Republic of Uzbekistan, or 98.2 percent of those who participated in the referendum.
- Neutral observers from the United States, Turkey, Malaysia and other countries participated in the referendum.



State attributes

- The state flag of Uzbekistan was approved on November 18, 1991, and since then, it is an official national symbol of the republic.
- The State Emblem of the Republic of Uzbekistan was approved on July 2, 1992, at the tenth session of the Supreme Council of the Republic of Uzbekistan. The national emblem of the Republic of Uzbekistan reflects the history, high spirituality, eternal values and way of life of Uzbek people. Each element, color and sign of the emblem has its own symbolic meaning.
- The law "On national anthem of the Republic of Uzbekistan" was adopted on December 10, 1992, at the 11th session of the Supreme Council of Uzbekistan. Poem by A. Aripov and music by M. Burkhanov.

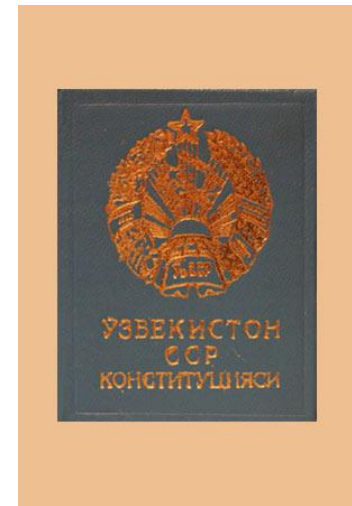


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What is Constitution?

- Constitution (from Latin constitutio - establish, appoint):
 - *main law of the state, determining its social and state structure*
 - *the procedure and principles for the formation of representative bodies of power*
 - *the electoral system, the basic rights and duties of citizens*
- History of Constitutions:
 - *the constitution of Turkestan ASSR in 1918, 1920*
 - *the constitution of Khorezm and Bukhara People's Republics of 1920-1921*
 - *the constitution of the Uzbek SSR in 1927, 1937, 1978*

They all were not essentially the Basic Law of a true independent state



The First Stage of Creation of Constitution

The idea of creating a new constitution is directly related to the adoption of the Declaration of Independence on June 20, 1990.

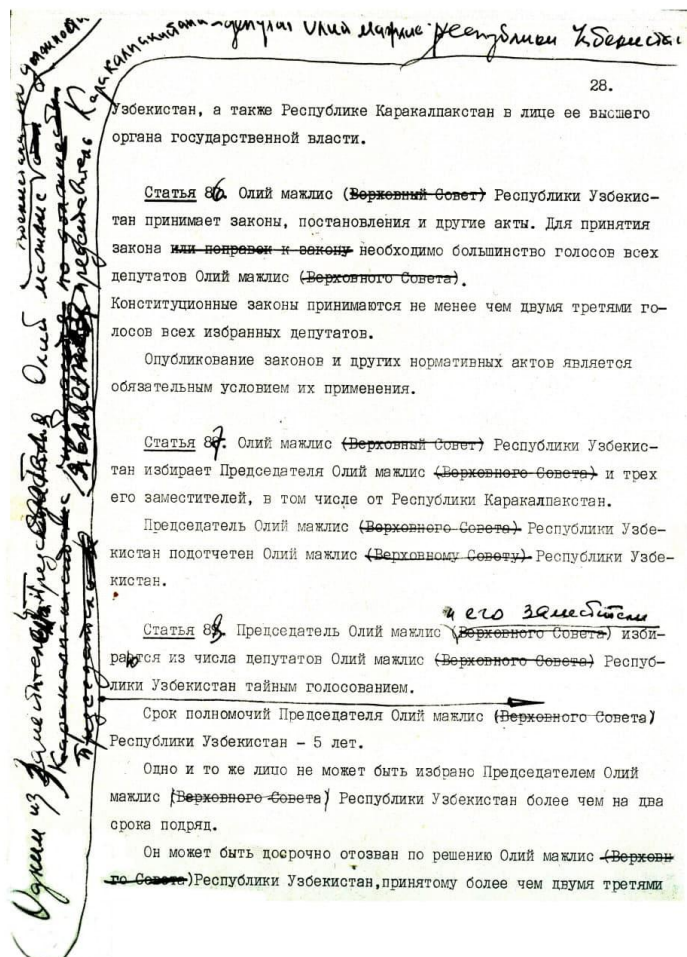
It was concluded at the second session of the Supreme Council that a new constitution of the state should be drafted.

The session approved on formation of Constitutional Commission under the chair of President I.A.Karimov, that consisted of 64 members.

It included representatives of parliament, the Republic of Karakalpakstan and regions, heads of state and public organizations, businesses, farms, prominent jurists, scientists and specialists.

The Activity of the Constitutional Commission

- The Constitutional Commission held its first meeting on April 12, 1991. A working group of 32 people, including members of the Constitutional Commission, leading experts and scientists, was created to coordinate all the organizational and creative processes associated with the draft constitution. Moreover, six small groups were organized to prepare each part of the constitution.
- The Chair of the Constitutional Commission has assigned the following tasks to the working group:
 - study the experience of constitutional development in the world;
 - take into account the achievements of other countries in human rights, democracy and legislation;
 - to create political-legal documents that are open to the public.
- According to the task, the constitutions of world countries such as US, France, Canada, Germany, Sweden, Japan, Italy, Spain, Greece, and Turkey were examined;
- Amir Temur's important counsels on the management of the state that described in his 'The Code of Timur' were also taken into consideration.



Versions of the Constitution

- The initial version of the project was prepared in October-November 1991. The constitution contained 158 articles divided into six parts. The first project was far from the level of perfection. It needed more improvement.
- In the spring of 1992, the second version of the project was developed with 149 articles. With the participation of the President of the country, a next meeting of the Constitutional Commission was held. It has tried to reflect the historical, national and spiritual aspects of the Uzbek people as much as possible.
- The draft of the Constitution of the Republic of Uzbekistan was announced and published in mass media for public discussion on September 26, 1992, following the decision of the Constitutional Commission.



Results of Public Discussion

- The general vote lasted three months. It was attended by all elderly people of different nationalities and ethnicities living in the country.
- Over 6,000 suggestions and comments were made during the referendum. Of 60 articles out of 127, corrected and clarified. Four articles were released from the original version and several new articles were added to the text.
- Many of the suggestions and thoughts were related to articles, chapters and parts dedicated to the rights and duties of citizens, personal immunity, the role and importance of religion in society, economic rights, including property rights, market relations and the constitutional foundations of law and order.
- In the meeting of Constitutional Commission on December 7, 1992, the President proposed to include articles on the equality of men and women, as well as the protection of cultural monuments into the draft constitution.
- As a result, the Constitution of the Republic of Uzbekistan adopted on December 8, 1992, at the eleventh session of the Supreme Council of the Republic of Uzbekistan of the Twelfth convocation.

The Structure of Constitution of Uzbekistan (1992-2023)

- *PREAMBLE*
- *Part one. Fundamental principles* – Chapters 1-4, Articles 1-17
- *Part two. Basic human and civil rights, freedoms and duties* – Chapters 5-11, Articles 18-52
- *Part three. Society and the individual* – Chapters 12-15, Articles 53-67
- *Part four. Administrative and territorial structure, and state system* – Chapters 16-17, Articles 68-75
- *Part five. Organization of state authority* – Chapters 18-26, Articles 76-126
- *Part six. Procedure for altering the constitution* – Chapters 26, Articles 127-128

Alterations and Additions to the Constitution

National referendum (January 27, 2002) - alterations and additions into chapters XVIII, XIX, XX, XXIII of the Constitution of the Republic of Uzbekistan.

27 Jan.
2002

11 Apr.
2007

The Law of the Republic of Uzbekistan (April 11, 2007) - amendments into Article 89, point 15 of Article 93, part two of Article 102 of the Constitution

The Law of the Republic of Uzbekistan (December 25, 2008) - alteration into part one of Article 77

25 Dec.
2008

The Law of the Republic of Uzbekistan (April 18, 2011) - alterations into Articles 78, 80, 93, 96 and 98

18 Apr.
2011

The Law of the Republic of Uzbekistan (December 12, 2011) - an amendment was made to part two of Article 90

12 Dec.
2011

The Law of the Republic of Uzbekistan (April 16, 2014) - alterations into Articles 32, 78, 93, 98, 103 and 117

16 Apr.
2014

The Law of the Republic of Uzbekistan (May 31, 2017) - alterations and additions to Articles 80, 81, 83, 93, 107, 110 and 112

31 May
2017

The Law of the Republic of Uzbekistan (February 2, 2021) - alterations and additions to Articles 7, 33, 85, 86, 107, and 117

2 Feb. 2021

Referendum 2023

- On April 30, 2023, a referendum on the new edition of the Constitution of the Republic of Uzbekistan was held in Uzbekistan.
- 16 million 667 thousand 97 people participated in the voting process:
 - 15 034 608 of them or 90.21% voted "yes"
 - 1,558,817 or 9.35 percent voted against.
- Question: "Do you accept the Constitutional Law of the Republic of Uzbekistan "On the Constitution of the Republic of Uzbekistan""?
- 73 thousand 672 votes of 9.35 percent of voters who answered "no" to the question were declared invalid.



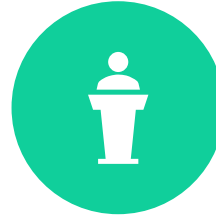
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PREAMBLE



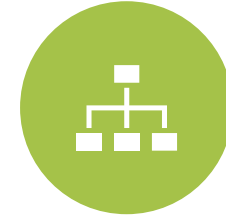
SECTION ONE. BASIC
PRINCIPLES – *CHAPTERS 1-4,
ARTICLES 1-18*



SECTION TWO.
FUNDAMENTAL RIGHTS,
FREEDOMS AND DUTIES OF
MAN AND CITIZEN –
*CHAPTERS 5-11, ARTICLES
19-64*



SECTION THREE. SOCIETY
AND PERSONALITY –
*CHAPTERS 12-15, ARTICLES
65-82*



SECTION FOUR.
ADMINISTRATIVE-
TERRITORIAL AND STATE
STRUCTURE – *CHAPTERS 16-
17, ARTICLES 83-90*



SECTION FIVE.
ORGANIZATION OF STATE
POWER – *CHAPTERS 18-27,
ARTICLES 91-153*



SECTION SIX. PROCEDURE
FOR AMENDING THE
CONSTITUTION – *CHAPTER
27, ARTICLES 154-155*

Thank you for your attention!